

24CMCV01920 24CMCV01920

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-09

Motion: PLAINTIFF'S MOTION TO COMPEL ATTENDANCE AT DEPOSITION AND PRODUCTION OF DOCUMENTS AND FOR MONETARY SANCTIONS DATE: July 9, 2026 TIME: 8:30 A.M.

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Case Number: 24CMCV01920 Hearing Date: July 9, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

STEPHANIE FLORES,

Plaintiff,

vs.

TARGET CORPORATION; AND DOES 1-50 INCLUSIVE,

Defendant.

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CASE

NO: 24CMCV01920

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION TO COMPEL ATTENDANCE AT
DEPOSITION AND PRODUCTION OF DOCUMENTS AND FOR MONETARY SANCTIONS

DATE: July 9, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff

Stephanie Flores

Responding Party: Target

Corporation

Notice: OK

Tentative Ruling: Plaintiff's

Motion to Compel Attendance at Deposition and Production of Documents is GRANTED.

Plaintiff's

Request for Sanctions is GRANTED IN THE REDUCED AMOUNT OF \$586.65.

I.

BACKGROUND

This is an

action for negligence and premises liability.

Plaintiff Stephanie Flores alleges that, on or about December 9, 2022, she was on Defendant Targe Corporation's premises at 1621 S. Alameda St., E, Compton CA, 90220 (the "Premises") when a box containing a scooter fell off a shelf and struck her, causing her to sustain severe injuries.

On December 4, 2024, Plaintiff filed the instant against Defendant alleging causes of action for: (1) Negligence; and (2) Premises Liability.

On

March 11, 2025, Plaintiff filed her first Motion to Compel Attendance at Deposition and Production of Documents. Plaintiff later took her motion filed on March 11, 2025 off calendar.

On April

2, 2026, Plaintiff filed the instant Motion to Compel Attendance at Deposition and Production of Documents and for Monetary Sanctions Against Defendant Target Corporation and/or Defendant's Counsel of Record in the Amount of \$761.65.

On

May 7, 2026, Defendant filed its Opposition.

As of July 8, 2026, no Reply has been filed. Pursuant to Code Civ. Proc.

§ 1005(b), all reply papers must be filed and served at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal

Standard

“Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency.” (Code Civ. Proc. § 2025.010.)

“[A]fter service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc. § 2025.450(a).)

A motion to compel a deposition must include a meet and confer declaration. (Code Civ. Proc. § 2025.450(b)(2).) Further, where production of documents is sought in connection with the deposition, the motion must set forth specific facts showing good cause justifying the production. (Code Civ. Proc. § 2025.450(b)(1).) A court shall impose monetary sanctions if the motion to compel is granted unless the one subject to sanctions acted with substantial justification or other circumstances would make the imposition of the sanction unjust. (Code Civ. Proc. § 2025.450(g)(1).)

B.

Meet and

Confer

A motion to compel deposition must “be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition...by a declaration stating that the petitioner has contacted the deponent to inquire

about the nonappearance.” (Code Civ. Proc. § 2025.450(2).) A meet and confer declaration made pursuant to Code of Civil Procedure § 2016.040 “shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion [and] shall also include whether the moving party has met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” (Id., § 2016.040(a), (b).)

Plaintiff's counsel Jason Smith (“Smith”) attests to communications between himself and Target's counsel regarding setting a deposition date for Target's Person Most Knowledgeable. (Smith Decl., ¶¶ 4-9, Exhs. B-H.) After various attempts at setting a deposition date (see Smith Decl., Exhs B-D), Smith attaches as Exhibit E a meet and confer letter stating that if Defendant's counsel does not provide mutually agreeable deposition dates within the next three business days of the letter then Plaintiff will file a motion to compel and seek sanctions. (Smith Decl., ¶ 7; Exh. E.) Smith also attaches as Exhibit F an email asking Target's counsel to provide PMK deposition availability by March 20th or Plaintiff will seek Court intervention. (Smith Decl., ¶ 8; Exh. F.) Defendant's counsel Connor Lasken (“Lasken”) responds that he has been out of the office and will follow up with PMK availability, to which Plaintiff's counsel responds to provide availability by the end of the week or Plaintiff will file its motion. (Smith Decl., ¶¶ 8-9; Exhs. G, H.)

Although Smith has not provided evidence that Plaintiff's meet and conduct efforts were conducted “in person, by telephone, or by videoconference” as required by the Code of Civil Procedure, the Court finds Plaintiff has demonstrated reasonable efforts to informally resolve the issue of selecting a mutually agreeable date for the deposition of Defendant's PMK and therefore determines that Plaintiff has substantially complied with the statutory meet and confer requirement.

C.

Discussion

1.

Target's PMK Deposition

Plaintiff contends she properly noticed the

deposition of Target's PMK for March 6, 2026 and followed up with defense counsel prior to the deposition date to confirm that the deposition would move forward. Target objected to Plaintiff's deposition of its PMK on February 27, 2026 and stated the defense counsel was obtaining alternative dates for a mutually agreeable date and time, but Target did not provide any such dates. Plaintiff contends she made multiple attempts to set a mutually agreeable deposition date via email but was unable to. Plaintiff argues that Target's objection that the deposition was unilaterally set is not the type of objection contemplated by Code of Civil Procedure § 2025.210 and further argues that Target's refusal to provide a deposition date is evasive and an effort to prevent the deposition from proceeding.

Target opposes, arguing that it validly objected to Plaintiff's Notices of Deposition on the basis that the deposition dates were unilaterally chosen by Plaintiff and its PMK and counsel were unavailable on the chosen dates.[1] Target further objects on the grounds that the deposition categories amount to an unwarranted annoyance, embarrassment, oppression, and/or undue burden and expense and argues Plaintiff has not met and conferred as to specific categories of examination for the PMK.

Although Target timely objected to Plaintiff's Notices of Deposition, Target failed to provide any alternative deposition dates despite communicating to Plaintiff that it would do so. Plaintiff is entitled to take the deposition of Target's PMK and Target makes no argument that Plaintiff is not entitled to take its PMK's deposition, only disputing the dates chosen and the PMK categories. The Court will order the PMK deposition to occur by a date certain. As to the PMK categories, the parties are ordered to meet and confer as is required by the Code of Civil Procedure - in person, by telephone, or by videoconference. Emails and letters will not suffice. Should the parties reach an impasse, the Court offers informal discovery conferences and will gladly discuss with the parties any and all discovery issues.

Plaintiff's Motion to Compel the Attendance at Deposition of Defendant's Person Most Knowledgeable is GRANTED.

2.
Monetary Sanctions

As

provided in the Legal Standard section above, Code of Civil Procedure section 2025.450(g)(1) requires the Court to impose sanctions against any party who unsuccessfully makes or opposes a motion to compel deposition, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Plaintiff argues she has incurred and will incur attorneys' fees of at least \$761.65 in drafting and bringing this motion and seeks sanctions in that amount. Smith attests he spent 1 hour preparing the moving papers and anticipates spending 1 hour on a reply brief and attending the hearing at a rate of \$350 per hour in addition to the \$61.65 filing fee. (Smith Decl., ¶ 14.)

Target argues Plaintiff's request for sanctions should be denied because Defendant acted with substantial justification by validly objecting to Plaintiff's deposition notices.

Here the Court finds that monetary sanctions against Plaintiffs are mandatory because the Court has granted Plaintiff's motion. While Target's objections to Plaintiff's unilaterally chosen deposition dates may have been justified, there is no substantial justification in failing to provide alternate deposition dates. However, although the Court finds monetary sanctions are warranted, given that no reply brief was filed the Court reduces Plaintiff's requested amount by ½ hour (-\$175.00) for a total sanctions amount of \$586.65.

Plaintiff's request for monetary sanctions is GRANTED IN THE REDUCED AMOUNT OF \$586.65.

III.

CONCLUSION

Plaintiff's Motion to Compel the Attendance at Deposition of Defendant's Person Most Knowledgeable is GRANTED. The parties are ordered to meet and confer upon a mutually agreeable date for the deposition of Defendant's PMK for a deposition to be conducted no later than September 30, 2026.

And Plaintiff's request for monetary sanctions is GRANTED in the reduced amount of \$586.65. The awarded

sanctions are to be paid to Plaintiff's counsel no later than September 30, 2026.

[1]

The Court does not comment upon Target's comments in its Opposition as to any potential settlement.